

11	2022-01275296 Zhang vs. Zhu	Motion to Compel Deposition (Oral or Written) Motion to Compel Deposition Plaintiff's Motion to Compel Deposition of Angel Pik-Chuen Lee and Production of Documents is DENIED without prejudice. California Rules of Court, Rule 3.1346 provides, "Rule 3.1346. Service of motion papers on nonparty deponent A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." Here, the proof of service for the motion does not reflect service of the motion on the nonparty deponent by any means. The motion does not comply with Rule 3.1346 and the deponent has not received notice and an opportunity to respond to the motion. The motion is denied without prejudice to Plaintiff's ability to file a renewed motion with proper service on the deponent.
12	2017-00956655 Thier vs. Farah	Motion to Enforce Settlement Plaintiffs/Cross-Defendant Paul Thier, Thier Ranches, LLC and Wanda Mascia Motion to Enforce the Settlement pursuant to CCP 664.46 is DENIED in part. On 9-21-21, the parties entered into a settlement made orally before the Court. The terms of the agreement are as follows: 1. There will be an "all-inclusive document encompassing these terms" (Shaw Decl., ¶ 2, Ex. A [September 22, 2021, Trial Transcript] at 23:2-3); 2. "Clickers will be needed to gain access through that entry point at the Hamilton Gate entrance to what we call Strip 2 of the Easement" (Id. at 23:4-7); 3. "The Hickey Gate on the south part of the 25 acre will be coded" (Id. at 23:12-14.); 4. There will be an easement granted to Mr. Thier that provides for "vehicular and pedestrian, as well as equestrian rights but only as equestrian rights as [to] Strip 1, and usage for the Strip 1 for equestrian purposes is limited to 20 round trips per day" (Id. at 23:15-20); 5. The settlement document will include an indemnity and hold harmless provision (Id. at 23:21-22);